

HOUSE No. 4729

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, November 13, 2025.

The committee on Public Health, to whom was referred the petition (accompanied by bill, House, No. 2523) of David M. Rogers and Patrick Joseph Kearney that the Department of Public Health be directed to promulgate regulations requiring that certain child care programs undergo routine radon testing, reports recommending that the accompanying bill (House, No. 4729) ought to pass.

For the committee,

MARJORIE C. DECKER.

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In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act promoting radon testing.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Notwithstanding any general or special law, rule or regulation to the contrary, the
2 department of public health, in consultation with the department of elementary and secondary
3 education and the department of early education and care, shall promulgate regulations to require
4 that, subject to appropriation, all child care programs, as licensed or authorized by the
5 department of early education and care, and public schools undergo routine radon testing.
6 Testing schedules, documentation of testing, standards for acceptable radon levels and plans for
7 mitigation of unacceptable levels of radon shall be determined, and made public, by the
8 department of public health within 1 year of the enactment of this bill.